

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
AT WICHITA, KANSAS

ROBERT DAVIS,	)	
	)	
Plaintiff,	)	
vs.	)	Case No.
	)	
SAMUEL HAROLD CROWE AND	)	
CRETE CARRIER CORPORATION,	)	
	)	
Defendants.	)	
_____	)	

COMPLAINT

COMES NOW the Plaintiff, by and through counsels Arthur E. Rhodes and Richard W. James of DeVaughn James Injury Lawyers, and for Plaintiff's claims against the Defendants, alleges and states:

A. PARTIES

1. Plaintiff Robert Davis is a Kansas resident and citizen that resides at 1329 Parkside Drive, Junction City, Kansas 66441.
2. Defendant, Samuel Harold Crowe, is a citizen of Easley, South Carolina and resides at 181 Davis Road, Easley, South Carolina 29640.
3. Defendant, Crete Carrier Corpoartion is a Nebraska for profit company with its principal place of business and corporate headquarters at 400 NW 56th Street, Lincoln, Nebraska 68528, and may be served with process through its resident agent, Curtis Ruwe, 400 NW 56th St., Lincoln, Nebraska 68528.

B. JURISDICTION AND VENUE

4. This Court has jurisdiction over the persons and subject matter.
5. Venue is proper in the Wichita division of the Kansas District Court of the Federal District Court.

6. This collision took place in Sherman County, Kansas on August 17, 2019.
7. This action is brought pursuant to 28 U.S.C. § 1332, in that the amount of controversy exceeds seventy-five thousand dollars (\$75,000.00) exclusive of interest and costs and on the basis of diversity of citizenship.

C. NATURE OF ACTION

8. This is a civil action for personal injuries suffered by Plaintiff Robert Davis.
9. This action arises out of a motor vehicle collision in the eastbound lanes of Interstate 70 in Sherman County, Kansas on August 17, 2019.
10. Plaintiff and Defendant were both traveling eastbound on I-70 when the semi-truck and trailer driven by Defendant Samuel Crowe came into the lane of the Plaintiff and sideswiped the Plaintiff's vehicle causing it leave the roadway and crash in a ditch on the south side of the roadway.

D. CAUSE OF ACTION - NEGLIGENCE

11. At all times relevant herein, Defendant, Samuel Crowe was an employee and/or agent of Defendant, Crete Carrier Corporation, and was operating in the course and scope of his employment with Defendant, Crete Carrier Corporation.
12. Defendant Samuel Crowe was hired, qualified, supervised, and trained by Defendant, Crete Carrier Corporation.
13. The actions and omissions of Defendants Samuel Crowe and Crete Carrier Corporation (both independently and through driver Samuel Crowe under Respondeat Superior and Vicarious Liability) were negligent and careless for the following reasons:
 - a. Failure to use proper signals;
 - b. Failure to warn;

- c. Failure to keep a proper lookout;
 - d. Failure to be attentive;
 - e. Failure to yield right-of-way;
 - f. Failure to maintain control of the vehicle;
 - g. Failure to exercise ordinary care, and
 - h. Failure to maintain a single lane.
14. Defendant, Crete Carrier Corporation was further negligent by failing to properly hire, train, and supervise its employees and/or agents, including Samuel Crowe, in a way that would ensure their operation of motor vehicles in a safe and prudent manner to prevent harm to other motorists.
15. The negligence of Defendants, Crete Carrier Corporation and Samuel Crowe caused the motor vehicle collision that injured Plaintiff, Robert Davis.
16. Defendant, Crete Carrier Corporation is a motor carrier and operating under authority through the United States Department of Transportation with an assigned D.O.T. number of 73705.
17. Upon information and belief, the semi-trailer truck being operated by Samuel Crowe was owned, maintained, dispatched, supervised, controlled and repaired by Crete Carrier Corporation and was used as a commercial motor vehicle in both intrastate and interstate business making it subject to the Federal Motor Carrier Safety Administration regulations under 49 C.F.R. Sections 381 et. Seq.
18. 49 C.F.R. § 390.3(e)(1) & (2) provide that every driver and employee shall be instructed regarding and shall comply with all applicable regulations contained in the FMCSR.

19. 49 C.F.R. § 390.5 provides that "motor carrier" means a for-hire motor carrier or a private motor carrier. That term includes a motor carrier's agents, officers, and representatives as well as employees responsible for hiring, supervising, training, assigning, or dispatching of drivers.
20. Crete Carrier Corporation was at all material times a "motor carrier" and an "employer" of its driver Samuel Crowe in regard to the operation of a commercial motor vehicle as defined in 49 C.F.R. §382.107.
21. The negligence of Defendant, Crete Carrier Corporation, and their employee/agent Defendant, Samuel Crowe, proximately caused the collision and the personal injuries and damages of Plaintiff.
22. As a result of Crete Carrier Corporation and Samuel Crowe's negligence, Plaintiff sustained severe personal injuries. Plaintiff has or is expected to sustain past medical expenses, future medical expenses, past lost wages, future lost wages, medical mileage, and past and future non-economic damages such as pain, suffering and mental anguish.

WHEREFORE, Plaintiff requests judgment against defendant for an amount in excess of \$75,000 plus costs and any further relief this Court deems fair, just and equitable.

Respectfully submitted,

DeVaughn James Injury Lawyers

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DEMAND FOR PRETRIAL CONFERENCE AND JURY TRIAL

COMES NOW the plaintiff and demands a pretrial conference and a trial by jury.

DESIGNATION OF PLACE OF TRIAL

COMES NOW the plaintiff and designates Wichita, Kansas as the place for trial in this matter.

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